

## 20STCV02913 20STCV02913

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Case Number: 20STCV02913 Hearing Date: September 17, 2026 Dept: 224

Carter v. Zuma

### TENTATIVE RULING

The motion is GRANTED IN PART and DENIED IN PART. The Court orders the inspection completed, on a modified protocol and subject to the temporal and privilege limitations set forth below, and orders production of the log data captured on July 21, 2026.

Both parties' requests for monetary sanctions are DENIED.

### ANALYSIS

#### Introduction

On January 23, 2020, Plaintiff David Carter filed the Complaint in this action.

On March 16, 2023, Defendant Yuan Shi aka Henry Shi moved for leave to file a Cross-Complaint against Carter alleging, among other claims, invasion of privacy and violations of the Stored Communications Act, 18 U.S.C. section 2701 et seq., arising out of Carter's access to the email account henry@zumavc.com and its associated Google Drive.

On January 23, 2026, Shi served Request for Inspection No. 177, seeking inspection of the email account and Google Drive, including all files stored therein and their activity and viewer history logs.

On February 27, 2026, Carter served a response objecting on grounds of relevance, overbreadth, burden, and privilege, and refusing any inspection.

On May 15, 2026, Shi filed a Motion to Compel Inspection of Email Account and Google Drive.

On May 21, 2026 and June 5, 2026, the Court held Informal Discovery Conferences addressing the inspection. The June 5, 2026 minute order states that the parties agree to access to non-privileged metadata on the Google Workspace drive, and that two experts and counsel are allowed to be present during download.

On July 21, 2026, the parties convened the inspection remotely. Carter, acting as

Global Administrator, exported four sets of account-level log events to files saved on his own computer. The examination ended without the collection of any file metadata after Carter's counsel declined to permit a Google Workspace data export.

On July 27, 2026, Shi proposed an alternative collection method using Axiom by Magnet Forensics. Carter did not respond.

On August 21, 2026, Shi filed the instant Amended Motion to Compel Inspection of Email Account and Google Drive and Request for Sanctions, which amends and supersedes the May 15, 2026 motion.

On September 3, 2026, Carter filed an opposition.

On September 10, 2026 a reply was filed as well as objection to improper reply evidence.

#### Meet and Confer

The Supplemental Declaration of Alexander H. Hu executed on August 21, 2026, sets forth the meet and confer efforts of counsel for the Defendant/Cross-Complainant, and counsel's attempts to resolve the discovery dispute informally through written correspondence, at two Informal Discovery Conferences, and at the July 21, 2026 examination itself. The Court finds that the declaration satisfies the requirement that the parties "meet and confer in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."

#### Legal Standard

"A party may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand," and "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b).)

Unlike with requests to compel further interrogatories, a moving party seeking to compel further responses for requests for production must show good cause along with satisfaction of the meet and confer requirement. (CCP§ 2031.310(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating "good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If "good cause" is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

"The party to whom a demand for inspection, copying, or testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand... A statement that the party ... will comply with the particular demand shall state that the production will be allowed either in whole or in part, and that all documents or things in the demanded category that are in possession, custody, or control of that party and to which no objection is being made will be included in the production. (2) A representation that the party lacks the

ability to comply with the demand... A representation of inability to comply with the particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set for the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of items. (3) An objection to the particular demand... If only part of an item of category of item in a demand... is objectionable, the response shall contain a statement of compliance or a representation of inability to comply with respect to the remainder of that item or category. If the responding party objects to the demand... the response shall do both of the following: [a] Identify with particularity any document or tangible thing... falling within any category of item in the demand to which an objection is being made, [b] Set forth clearly the extent of, and the specific ground for the objection.... If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (California Code of Civil Procedure §§ 2031.210, 2031.220, 2031.230, and 2031.240)

#### Good Cause

Shi has established good cause. Carter's verified responses admit that he accessed the Account from November 2019 forward, ran keyword searches, downloaded and saved emails and files to his personal Drive and computer, sent emails from the Account, changed the credentials, and altered document permissions — while stating under penalty of perjury that he recalls none of the dates, search terms, or specific permission changes and has produced no records of them. Each cross-claim, and Carter's consent and litigation privilege defenses, turn on those facts.

Good cause has been established.

#### Discussion

##### Request No. 177

Request for Inspection No. 177 seeks inspection of the henry@zumavc.com email account and associated Google Drive, "including all files stored therein and their activity and viewer history logs." Carter objected on relevance, overbreadth, burden, and privilege grounds. Shi moved to compel on May 15, 2026.

Following IDCs on May 21 and June 5, 2026, the parties agreed to a metadata inspection. The Court's June 5 minute order recites that "[t]he parties agree to access to non-privileged metadata on the Google Workspace drive" and that "[t]wo experts and counsel are allowed to be present during download."

The inspection convened by Zoom on July 21, 2026. Carter, acting as Global Administrator, exported four sets of account-level log events (67 user log entries, 1,059 Drive log entries, 34 OAuth entries, 14 takeout entries) to CSV files saved on his own computer. Queries of the admin data action log and Vault log returned nothing. When Dr. Greenfield then asked Carter to perform a Google Workspace data export so that file-level metadata could be extracted account-wide, Carter's counsel refused and the session ended. The exported log files have never been produced, and no privilege log has been served.

On July 27, 2026, Shi proposed an alternative method using Magnet Forensics' Axiom, with the collected file contents wiped after metadata extraction. Carter did not respond.

Carter objects that Request No. 177 specified no date, time, place, or manner, and that the Court cannot compel discovery broader than the demand or conscript him into performing the inspection.

The objections are without merit. The specification objection was not raised in Carter's response and is waived. (Code Civ. Proc., § 2031.240(b)(2).) It is in any event cured by Attachment A, which supplies the date, time, place, participants, manner, and the express no-alteration statement, and the Court independently may set the terms of the inspection it orders. (Code Civ. Proc., §§ 2031.060(d)-(e), 2031.310(e)-(f).)

Independently, the parties twice agreed to an inspection, addressed it at two IDCs, and actually convened and partially performed it.

Carter's reliance on *Volkswagen of America, Inc. v. Superior Court* (2006) 139 Cal.App.4th 1481 and *Brown v. Superior Court* (1985) 168 Cal.App.3d 489 is misplaced. Those cases bar an order compelling discovery broader than the demand. The relief sought here – non-privileged metadata – is materially narrower than Request No. 177, which on its face reached the files themselves.

Carter's principal objection conflates two categories of data. The log events he exported reflect account-level activity; they do not contain the metadata of the individual emails and files showing when and how each item was accessed or modified. Both fall within Request No. 177. The download is a step in the collection, not a production. Axiom collects the Account into a secure forensic container, the raw metadata is separated from the contents without anyone reviewing them, the metadata goes to Carter's counsel for privilege review, and the contents are wiped. Nothing in this order permits Shi, his counsel, or Maryman to receive, review, or retain the file contents.

Nor does the record support the contention that a data export was never contemplated. The June 5, 2026 minute order refers to counsel and experts being present "during download." Carter raised no objection for six weeks and objected first mid-session on July 21. The Court does not read the June 5 minute order as having adjudicated the method of collection.

As to privacy and privilege, these objections are addressed by the protocol. Carter elects who performs the collection. If Maryman performs it, Carter changes the password before and after, credentials are shared with no one, and Carter and his counsel observe every step by screen share, including the wipe. All material is tendered to Carter's counsel first for privilege review, and Shi receives only non-privileged metadata with a privilege log.

Carter's remaining objection regarding temporal scope has merit. The demand is not reasonably limited in time and would reach approximately eleven years, when his own pre-litigation access spanned two months. Shi offers no theory under which metadata reflecting his own use between 2015 and November 2019 bears on the cross-claims.

Further response is ordered, including a privilege log for any documents withheld on grounds of privilege. Production, however, is limited to metadata reflecting events occurring on or after November 20, 2019.

## Sanctions

The Court must impose a monetary sanction against a party or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless the Court finds that the party subject to sanction acted with substantial justification or that other circumstances would make the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Both requests are denied. The record reflects genuine ambiguity about what was agreed. The Court declines to find that the motion was made or opposed without substantial justification. (§§ 2031.310(h), 2023.020.)

## Conclusion

The motion is GRANTED IN PART and DENIED IN PART. The Court orders the inspection completed, on a modified protocol and subject to the temporal and privilege limitations set forth below, and orders production of the log data captured on July 21, 2026.

Both parties' requests for monetary sanctions are DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [SMCDept224@lacourt.org](mailto:SMCDept224@lacourt.org) indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.